

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Thursday, June 11, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

22CV-02836	TD Bank USA, N.A. vs. Roberto Dominguez Amaro
------------	---

Order Show Cause Re: Dismissal – Notice of Settlement

Appearance required. This hearing was continued on the Court's own motion from January 28, 2026, and again from March 26, 2026, with notice provided to Plaintiff. The Court notes that on January 5, 2026, Plaintiff filed a request for entry of default and clerk's judgment that was rejected due to a mathematical error. If an amended request for entry of default and clerk's judgment is submitted, the hearing will be vacated and order to show cause discharged.

The Court previously noted that on December 20, 2022, Plaintiff filed a Notice of Settlement indicating the parties agreed to a conditional settlement and that a request for dismissal would be filed no later than October 30, 2025. No request for dismissal has been filed.

24CV-0200

State Farm Mut. Auto. Ins. Co. vs. Daryl Peterson

Review Hearing – Status of Default Judgment

Appearance required. Continued from February 5, 2026. The Court notes that Defendant's default was entered on October 15, 2025, but to date no request for default judgment has been filed. Appear to address status of default judgment.

24CV-02306

Cavalry SPV I LLC vs. Liliana Gutierrez

Order Show Cause re: Sanctions

Appearance required. Defendant is required to appear to show cause why monetary sanctions should not be imposed against Defendant for failure to appear at the noticed hearing on April 9, 2026.

Motion to Compel Arbitration and Stay Proceedings

Appearance required. As the Court noted at the April 9, 2026, hearing, on October 8, 2024, Defendant filed a purported motion to compel arbitration and stay proceedings in response to the complaint (labelled "Answer to Complaint") but did not file a notice of motion or request a hearing date. The Court raised this issue at the case management conference on February 6, 2026, and directed Defendant to serve the motion on Plaintiff. Nothing further has been filed by Defendant with the court since February 6. Appear to address status of Defendant's motion to compel arbitration.

24CV-04228

LVNV Funding LLC vs. D Wisdom Hambrecht

Review Hearing – Status of Default Judgment

Appearance required. Continued from March 12, 2026. Appear to address status of default judgment.
